

Cover story **JUDICIARY**

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NAVKESH BATRA
Lawyer

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I am revealing my assets to rationalise the notion that the person who is entrusted with the task of judging others is beyond reproach.

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K. KANNAN
Judge, Punjab & Haryana HC

disposed towards the ruling dispensation in the future. In an era of coalition governments, the filing of cases against politicians is often dictated not by the seriousness of the offence but by the party affiliation of the accused. “The judiciary has completely failed the people. It enjoys an exalted position and complete independence which no other institution enjoys. Therefore, it has no reasons not to deliver,” says Navkesh Batra, a Bangalore lawyer.

According to the Supreme Court’s interpretation of the provisions, the process of appointment of judges is initiated by the chief justice through a collegium consisting of the CJI and four of the senior-most judges of the apex court. The recommendation of the collegium is binding on the President. If the President does not approve a nominee for any specific reason, the collegium must reconsider its recommendation. The collegium can then either drop the name not found fit by the President or reiterate its recommendation after reconsideration. A recent parliamentary committee report observed that the interpretation of the constitutional provision by the apex court in 1993 has led to a situation wherein the executive’s discretion in the appointment of judges has been totally negated. “I know what happens in the committee of five. I don’t want to discuss or disclose that but we have seen the kind of appointments that have been made,” former CJI P.N. Bhagwati told a parliamentary committee.

The current process of selection of judges by a collegium is neither transparent nor open to scrutiny. Recently, West Bengal Chief Minister Buddhadeb Bhattacharya questioned the credentials of four lawyers out of a list of 13 chosen for appointment as judges. In his letter, Bhattacharya raised doubts about the qualification of one nominee and the genuineness of another’s law degree. He pointed out to the Law Ministry that the conduct of one was “unbecoming of that of a high court judge” and another had “nothing worthwhile to show as a lawyer”. It is usual that a person who has worked as a district judge or has practised in a high court is appointed a judge in the same high court where he has colleagues as advocates—both senior and junior—as well as his kith and kin, who had

IMTIYAZ KHAN



IN COURTS ACROSS THE COUNTRY, THE WAIT FOR JUSTICE IS OFTEN ENDLESS

been practising with him, leading to many “My Lords” being mockingly called “uncle judges”. This has given rise to a call for a wider body like the National Judicial Commission comprising members such as nominees of the Supreme Court, chief justices of the high courts, the Union Cabinet, the Opposition and the Bar. So far resistant to the idea, the Supreme Court is now ready for a change. “Certainly. Why not? The judges can be considered by the (wider) body. But it should not be of politically interested persons. That may cause some problems,” says CJI K.G. Balakrishnan (see interview).

In the meantime, the UPA Government has

THE CBI WANTS CASES TO BE COMPLETED IN LESS THAN THREE YEARS BUT THERE ARE OVER 10,000 CASES WHERE THE AGENCY HAS FILED CHARGESHEETS AND TRIALS ARE YET TO BEGIN.